

		in deciding whether to grant leave to amend. (<i>Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)</i> (1989) 213 Cal. App. 3d 1045, 1048) Accordingly, the motion is GRANTED. TTV shall file and serve the verified cross-complaint attached as Exhibit A to the declaration of Thomas J. Weiss within 14 days. <i>TTV shall give notice.</i>
6.	Hajjar v. Hyundai Motor America 25-1522162	The motion to compel arbitration of the claims of plaintiff Diana Hajjar (Plaintiff) filed by defendant Hyundai Motor America (Defendant) is DENIED. On a motion to compel arbitration, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (California Arbitration Act); see also <i>Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board</i> (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 (Federal Arbitration Act).) Defendant seeks to compel arbitration of Plaintiff's claims based on an arbitration provision contained in Defendant's Owner's Handbook & Warranty Information (Warranty), which Defendant states accompanied the Vehicle. In the alternative, Defendant seeks to compel arbitration based on the arbitration provision contained in Defendant's Connected Services Agreement (CSA) between the parties. As to the Warranty, Defendant has offered no evidence that Plaintiff received any notice of, or agreed to, the Warranty's arbitration provision prior to her purchasing the Vehicle. Defendant does not claim that the Warranty or the arbitration provision therein was signed by Plaintiff or was even seen by her. Defendant has provided nothing to suggest Plaintiff consented to the agreement in the Warranty. Simply because the Warranty accompanied the Vehicle does not mean Plaintiff was aware of the arbitration provision or read it. Under California law, an offeree "is not bound by inconspicuous contractual provisions of which he [or she] was unaware, contained in a document whose contractual nature is not obvious." (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294.) "This 'principle of knowing consent applies with particular force to provisions for arbitration . . .'" (Id. at p. 1294.) There is no evidence Plaintiff had notice of the existence of an agreement to arbitrate by virtue of the Warranty. Thus, mutual assent is lacking. (See <i>Esparza v. Sand & Sea, Inc.</i> (2016) 2 Cal.App.5th 781, 790 [holding arbitration agreement unenforceable where offeree lacked a reasonable opportunity to read or learn of the arbitration provision at the time of signing].) In addition, equitable estoppel cannot apply here, as a warranty is not a traditional contract. It is effectively a unilateral promise to the consumer. (See <i>Gavaldon v. DaimlerChrysler Corp.</i> (2004) 32 Cal.4th 1246, 1258; <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144

		Cal.App.4th 824, 830.) In the arbitration context, “[w]hen a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.” (<i>JSM Tuscany, LLC v. Superior Court</i> (2011) 193 Cal.App.4th 1222, 1239, emphasis added.) But “[a]n essential element of any contract is the consent of the parties, or mutual assent.” (<i>Donovan v. RRL Corp.</i> (2001) 26 Cal.4th 261, 270.) That is not shown here. Equitable estoppel thus cannot apply in this context. Furthermore, Plaintiff’s claims are not clearly dependent on the Warranty. The causes of action allege violations of the Song-Beverly Act, which imposes certain statutory obligations on manufacturers who make express warranties. (<i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1133.) Plaintiff’s claims are based on Defendant’s violations of these statutory obligations, rather than a term of the Warranty itself. As such, Defendant failed to show equitable estoppel applies. As to the CSA, the contract specifically states that it applies to “our provision of Connected Services to you,” and so does not purport to apply to the Vehicle’s warranty. Further, the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (<i>Ahern v. Asset Management Consultants, Inc.</i> (2022) 74 Cal.App.5th 675, 692-693.) The subject claims must “have their roots in the relationship between the parties which was created by the contract” before they can be deemed to fall within the scope of the arbitration provision. (<i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) The “Connected Services” provided under the CSA are not at issue in this case. Plaintiff’s claims thus are not “rooted” in the relationship created by the CSA. Based on the foregoing, Defendant failed to establish the existence of a written agreement to arbitrate between the parties based upon either the Warranty or the CSA. Accordingly, the motion is DENIED. Defendant’s request for judicial notice of the Complaint in this action is GRANTED. (<i>Evid. Code</i>, § 452(d).) <i>Counsel for Plaintiff is ordered to give notice.</i>
7.	Delatorre v. Smith 2-1498067	(Continued)
8.	Zhou v. Liu 26-1551228	Before the Court at present is the “Motion to Correct the Proposed Judgment Recalculate the Monetary Award and Request Other Relief Authorized By Law,” filed on 7/20/26 by Defendants Xiaobo Liu and Yu Zheng (“Defendants”). The Motion is DENIED. The Motion presents various arguments, but Defendants have failed to present supporting authority for any request for relief. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v.</i>